Revision:
03/01/2021

Background:
Use or disclosure of information obtained from CalFresh applicant or recipient households is restricted to persons directly connected with the administration or enforcement of the provisions of the Food and Nutrition Act or similar means-tested public programs.

Purpose:
This section includes policies for sharing information and obtaining release of information from customers.

Policy:
Confidential information may only be released, without the consent of the customer, for purposes directly connected with the administration of public social services programs. The Human Services Specialist (HSS) will record in the case comments all requests for information and the disposition of the request.

1. Authorized Disclosure List

In addition to HHSA staff of this County and other counties or states, the following agencies and/or persons are authorized to receive or exchange confidential information. This list is not intended to be complete or result in the automatic disclosure of information to persons or agencies on the list. The list will provide a quick reference of persons and agencies most frequently making authorized inquiries.

- Auditor and Controller (County, State and Federal)
- County Counsel (except for investigations of workers' compensation claims or other questionable situations)
- Department of Social Services (County, State, Federal)
- Department of Health Services (County, State, Federal)
- United Behavioral Health (UBH)
- District Attorney (Bureau of Public Assistance Investigations (BPAI), Bureau of Child Support Enforcement, Welfare Employee Fraud Prosecutions, Child Support Prosecutions only)
- Employment Development Department (EDD)
- Mental Health Services (County or County Contractor)
- Social Security Administration (SSA)
- Voluntary Refugee Agencies (VOLAGS and Central Intake Unit)
- Juvenile Probation Department (for billings on AFDC Foster Care cases)
- Grand Jury
- Revenue and Recovery
- Housing Authorities (County, State, or Federal Government)
- Contracted Employment Services

Note: If in doubt as to the appropriateness of releasing any program specific information, contact HHSA Self-Sufficiency Services, CalFresh Program.

2. Public Administrator

In San Diego County, the Public Administrator is the Indigent Burial Officer and operates the Indigent Burial Program as an agent of HHSA. CalFresh records are **not** to be released to the Public Administrator without the consent of the customer.

Note: If all members of the household are **deceased**, CalFresh records **cannot** be released.

3. Research Organizations/Graduate Students

Before access to case records can be granted, research organizations or graduate students conducting research for a thesis or term paper must submit information regarding the project to HHSA Self-Sufficiency Services, CalFresh Program to resolve confidentiality issues and provide policy and procedures regarding the release of information.

4. Customer Consent Required

Information contained in applications or other documents made and/or kept by HHSA may be released to the customer or their authorized representative subject to the following conditions:

- The customer has authorized the release of the information, and
- The information was provided solely by the customer, **or** the customer authorized HHSA to obtain the information (bank verifications, income verifications, etc.)

5. Written Authorization

Written authorization to release confidential information must be signed and dated by the customer and must be received by the HSS prior to release of the information. The authorization does not have to specify the exact information to be released. A general release is sufficient. However, the HSS will comply with limits on information to be shared if the authorization identifies only specific items.

- The authorization may be faxed, emailed or uploaded electronically to the HSS. If submitted electronically, a follow-up hard copy is **not** required.
- The authorization expires one year from the date signed unless the document expressly limits it to a shorter period.
- The customer may revoke the authorization at any time.
- To use the authorization, the representative must first be positively identified and documented in case comments.

6. Telephone Authorization

Telephone authorization may be accepted when the customer has positively identified themselves to the County. A telephone authorization is temporary and acceptable for one-time contacts. If the customer wishes to authorize release for a longer period, a written authorization is required.

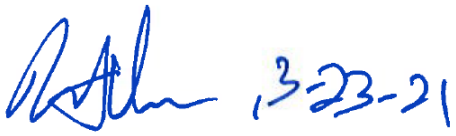
References:

MPP 19-000, 63-201 and 63-300

Sunset Date:

This policy will be reviewed for continuance on or before 02/29/24.

Approval for Release:



RICK WANNE, Director
Self-Sufficiency Services